



POLICE DEPARTMENT

August 8, 2019

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Henry Henriquez :

Tax Registry No. 938657 :

75 Precinct :

Case No.

2017-18001

-----X
At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Anna Krutaya, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent:

John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Henry Henriquez, on or about December 2, 2016, while assigned to the 75th Precinct, while on duty, failed to take police action, to wit: Said Police Officer failed to prepare a Police Accident Report after arriving at the scene of a vehicle collision.
P.G. 217-01, Page 2, Paragraph 11 VEHICLE COLLISIONS GENERAL PROCEDURE
2. Said Police Officer Henry Henriquez, on or about December 2, 2016, while assigned to the 75th Precinct, while on duty, failed to notify the Communications Division Dispatcher that an authorized DARP tow truck was needed at the scene of an accident.
P.G. 217-09, Page 2, Paragraph 3 DIRECTED ACCIDENT RESPONSE PROGRAM (D.A.R.P.)
3. Said Police Officer Henry Henriquez, on or about December 2, 2016, while assigned to the 75th Precinct, while on duty, permitted an unauthorized tow truck to remove a vehicle from an accident scene in violation of the DARP procedures.
P.G. 217-09, Page 2, Paragraph 6 DIRECTED ACCIDENT RESPONSE PROGRAM (D.A.R.P.)
4. Said Police Officer Henry Henriquez, on or about December 2, 2016, while assigned to the 75th Precinct, while on duty, wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer did inappropriately request that a person involved in a vehicle accident (UC5064) take a "selfie" photograph. (*As amended*)
P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT - PROHIBITED CONDUCT
5. Said Police Officer Henry Henriquez, on or about December 2, 2016, while assigned to the 75th Precinct, while on duty, wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer made misleading statements during his official Department interview by withholding information relating to how an unauthorized tow truck happened to be at the scene of a vehicle collision he was investigating. (*As amended*)
P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT - PROHIBITED CONDUCT
6. Said Police Officer Henry Henriquez, on or about December 2, 2016, while assigned to the 75th Precinct, while on duty, wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer did improperly call an unauthorized tow truck to the scene of a motor vehicle accident. (*As amended*)
P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT - PROHIBITED CONDUCT

7. Said Police Officer Henry Henriquez, on or about December 2, 2016, while assigned to the 75th Precinct, while on duty, did fail to properly prepare and maintain his Activity Log, to wit: said Police Officer failed to make proper Activity Log entries pertaining to a motor vehicle accident. (*As amended*)

P.G. 212-08 Page 1, Paragraph 1 ACTIVITY LOGS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 12, 2019.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Lieutenant Isaac Franco, UC5060 and Detective [REDACTED] as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent Guilty and recommend that he forfeit 45 vacation days and be placed on one-year dismissal probation.

ANALYSIS

It is undisputed that an integrity test took place on December 2, 2016 as part of an Internal Affairs investigation into the failure of MOS in the 75 Precinct to follow the guidelines under the Directed Accident Response Program (DARP). As a result of the test, Respondent and his partner were found by IAB not to have followed the procedure, which includes calling a central dispatcher from the scene of an automobile accident. IAB also concluded that Respondent did not file an accident report and did not note the eventual arrival of a tow truck in his activity log. Additionally, Respondent remarked to an undercover officer, portraying a driver, that he would take her photograph and send it to her late at night. What is in dispute is whether Respondent inappropriately failed to follow the DARP procedures, whether he made misleading statements in official interviews, and whether he behaved inappropriately with an undercover officer portraying a member of the public during the test.

Lieutenant Isaac Franco of IAB Group 34 testified that he supervised the investigation and later took over as the case investigator when the previous case investigator retired. Rather than targeting a specific MOS, IAB was conducting an investigation into allegations that officers in the 75 Precinct generally were not utilizing the DARP procedures. Franco's group notified IAB Group 52 of the allegation and IAB Group 52 conducted an integrity test on December 2, 2016. According to Franco, DARP is supposed to be utilized when one vehicle strikes another, or strikes property, including a bicycle or building. Officers are to notify the central dispatcher from DARP when they determine that a car is inoperable. (Tr. 11-17)

The integrity test consisted of a simulated vehicle accident, in which a female driver (Detective [REDACTED] formerly an undercover police officer) struck a male bicyclist, UC 5060; the car was inoperable and could not start, although it did not have visible damage. The bicycle had damage to one tire. Franco reviewed footage of the incident (Dept. Exhibits 1A-1C). The bicyclist told Respondent and his partner, Police Officer Walsh, that he was off his bike when it was struck. The bicyclist "requested numerous times that he needed a report made...for his supervisor." The driver described "suddenly" having to stop and colliding with the bicycle, making her car inoperable. Franco testified that the DARP procedure needed to be followed in such a situation. According to Franco, Respondent should have contacted the DARP dispatcher, who would dispatch a tow truck to the scene. Respondent and Walsh never contacted the DARP dispatcher or completed an accident report. According to Franco, Respondent should have filled out an accident report; Franco acknowledged that fake accidents are sometimes used for fraudulent purposes, but testified that officers are still expected to complete the report and note that they suspect fraud, rather than skip the report altogether. Additionally, Franco saw no indication in Respondent's memo book that he believed the incident to be fraudulent. Franco also noted that neither injuries nor visible damage to vehicles are prerequisites to filling out an

accident report. Respondent told the bicyclist that he would issue him a summons if he were to prepare an accident report. (Tr. 18-27, 39, 43-48, 64-65)

Franco also testified that Respondent should have made an accurate memo book entry pertaining to the accident. Respondent recorded that he went to the scene of a motor vehicle accident and wrote the disposition as "91," indicating "non-crime corrected." Instead, according to Franco, Respondent should have recorded that he took a report and contacted DARF. There was no other reference to the incident in his memo book. Eventually, Respondent called an individual named [REDACTED] and an unauthorized tow truck came to the scene. Respondent shook the tow truck driver's hand when he arrived and the tow truck removed the car. (Tr. 27-30)

Additionally, Franco observed in the video that Respondent engaged in misconduct in his interaction with the driver. Respondent photographed the driver's license and attempted to "take a selfie" with her even though "the female undercover requested numerous times to stop." Respondent kept telling her that he wanted to take a picture with her and send it to her and her boyfriend "at 1:00 o'clock in the morning." Franco did acknowledge that using "humor" is a potential strategy to de-escalate a situation. (Tr. 30-31; 48-51)

Franco further testified that Respondent also made misleading statements during his official interviews. Investigators asked if he notified anybody to bring a tow truck to the scene, and he answered that "he didn't make a phone call." At his third and final interview, "[w]hen he was confronted with the video and audio, he admitted that he made a phone call to an individual by the name of [REDACTED] in regards to this accident." Respondent told the driver that the tow truck was coming and that "he would make the report go away." Another undercover portrayed the driver's boyfriend. (Tr. 31-34) Franco acknowledged that before his first two department interviews, Respondent was not permitted to review the file from the integrity test;

before his second department interview, he was also not allowed to review his answers from the first interview. Franco was unsure of the precise reason, but believed that the delay in showing Respondent the footage of the integrity test was to "blur out" the faces of the undercover officers. (Tr. 57-61)

Undercover officer UC 5060 of IAB Group 52 testified that during the integrity test, he "was assuming the role of a delivery worker with limited English proficiency." He was at the scene of a car accident with his bicycle, which had a "visibly damaged and bent" front wheel. He explained to Respondent that he needed a report because the bicycle belonged to his boss and was damaged when the car hit it. He heard the female undercover, the "driver," tell Respondent something to the effect that UC 5060 was not injured and that he had hopped off his bike. He asked for the report "approximately six times" and Respondent replied, "I'll do what is called an aided report, which is when someone gets injured or checked out by EMS." UC5060 continued insisting that he needed a report, and gave Respondent his ID. Respondent told him that if he continued asking for a report, he would give him three tickets because the incident was his fault. Respondent also mentioned that the driver might sue UC 5060 "since there was damage and...it was my fault." After some time, Respondent returned the ID, gave UC 5060 the precinct's phone number and told him to call for a report. UC 5060 gave Respondent his phone number and left the scene. He felt that he had given Respondent "sufficient time" to complete an "aided card." UC 5060 testified that he determined that he only needed to record audio rather than video of the incident and that he was aware video was being recorded. (Tr. 78-82, 88, 103-106, 111-113)

Detective [REDACTED] formerly of IAB Group 52, testified that at the time of the incident, she was conducting an integrity test, targeting the 75 Precinct, regarding the DARP procedures. She was the primary undercover, meaning that she would "have the most contact

with the subject officer." Her undercover number was UC 5064. She was working with UC 5060, who portrayed the bicyclist, and UC 5040, who acted as her boyfriend. While her team initially had access to both audio and video devices, she noted that there are times when such devices cannot be used, for example "where there is no way to conceal the audio or video device." In this instance, her audio device "malfunctioned in the very beginning of the test," leaving her with only the video device. (Tr. 120-125)

During the test, Respondent and Officer Welsh came to the scene of the purported accident. [REDACTED] was approached by Officer Welsh. [REDACTED] was "frantic" and "frazzled" and "insisting that it wasn't my fault." She told Respondent that her car had made contact with the bicycle and that her car would not start. While she was talking to Welsh about having her car towed, she heard Respondent talking to UC 5060, who "said he needs a report" and "kept insisting that he wants to sue." Respondent told UC 5060 that he needed to calm down or he would be issued two summonses. Respondent began to search on Google for ways to get [REDACTED]'s car to start, and found an article indicating that a special computer was needed. [REDACTED] "still was insisting that I needed a tow for this car.... I wanted the car towed to [my boyfriend's] shop." Respondent eventually told her that she would need money to have the car towed, and [REDACTED] told him that she did have money and was not concerned about the cost; she simply did not want to leave the car where it was. She heard Respondent call someone by the name of [REDACTED] and then explain to Welsh that they could not put the incident over the radio. [REDACTED]'s recording did not capture this statement but she noted it in her undercover report and her worksheet. Respondent later explained that the person he had been speaking to was from a tow company, which was coming to the location. (Tr. 126-130, 145, 168-169)

Once her car had been moved to the side, [REDACTED] went to speak to Respondent by the passenger's side of his patrol vehicle, because the driver's side faced the middle of the street.

Respondent gestured for [REDACTED] to open the door to hand him her documents; the windows were closed because it was cold outside. Respondent told [REDACTED] that she could come inside the car and sit down, adding, "I don't bite." [REDACTED] entered the car and sat down. Respondent photographed her ID with his phone and asked for her phone number; she provided her undercover phone number. Eventually, [REDACTED] called back to say that he would be there shortly. Respondent and [REDACTED] "started having small talk." Respondent called Welsh to ask where he was, and told him that he was going to take [REDACTED] to "a restaurant somewhere in Brooklyn." Respondent and Welsh began making jokes, for example about [REDACTED]'s nervous demeanor and about how her boyfriend seemed "mean." Respondent said, "Well, I have her home number so I can call her at any time. I'll call her at night. I'll call her tonight and get her in trouble." [REDACTED] told him not to. Respondent then told Welsh to come "take a selfie" with [REDACTED]. [REDACTED] kept telling them that she did not want to take a picture, "but they both insisted." She attempted to open the door but Welsh blocked her from leaving and began grabbing her torso while smiling for a picture; Respondent "lean[ed] back towards the door, holding a cell phone up as if he was taking a picture." [REDACTED] put her head down into her chest and said, "Get off of me." After repeatedly telling them that she did not want to take pictures, Respondent and Welsh said that they would take the photographs and send them to her boyfriend "late at night." Eventually, she pushed her way out of the car and said that she would wait outside. [REDACTED] acknowledged that Respondent did not make physical contact with her while she was in the car and that he did not "force" her to remain in the car. (Tr. 130-135, 156-159, 169)

[REDACTED] testified that she never called for backup because she was undercover and undercovers do not do so unless they are in danger. She did feel uneasy but did not feel that she was in any danger, and there were other undercovers in the area. (Tr. 136)

When her "boyfriend," UC 5040, arrived, she explained the accident to him and told him to speak to Respondent. Respondent told him not to worry and that the car was not damaged. He said that no report was made and "we made the report go away." After approximately five minutes, the tow truck arrived and Respondent shook the driver's hand. [REDACTED] and UC 5040 waited for the car to be lifted onto the truck so they could leave. (Tr. 138-140)

Before this tribunal, [REDACTED] listened to a recording (Dept. Ex. 4A) of the incident and identified Respondent's voice as the one asking her for a "selfie" and saying that he made the report "disappear." She also viewed video footage (Dept. Ex 1B) and identified Welsh as the officer hugging her and Respondent as the one leaning to the side and holding up his phone to take a picture. (Tr. 140-142) On cross-examination, [REDACTED] acknowledged that the undercover did not use the bicycle to scratch the car. She did not recall whether Respondent asked for her registration, insurance card and driver's license or whether she simply handed it over herself. (Tr. 148-149)

Respondent testified that on December 2, 2016, he was assigned to patrol in the confines of the 75 Precinct with Officer Welsh. At approximately 1340 hours, they received a radio transmission about an accident. Respondent also testified that there "might have" been a mention of a "pedestrian," which can include someone on a bicycle. Upon arrival at the scene, he observed "what appears to be a car in the middle of the road and another gentleman with a bicycle." The bicyclist appeared to be an Asian man and the driver was a black female, who was "highly upset" and concerned about the car and her boyfriend's potential reaction to the accident. There did not appear to be any injuries or damage to the car, but Respondent decided to call EMS because "some of the statements" indicated that "the bicyclist might have fell off the bicycle." Respondent initially testified that he did not remember the bicycle being damaged but

later changed his testimony and admitted that the bicycle appeared to be damaged. (Tr. 175-178, 181-182, 201, 204, 237)

Respondent next tried "to ascertain both parties' details of the incident." Respondent initially testified that neither the driver nor the bicyclist made it clear that there had been an accident. However, on cross-examination, Respondent admitted that the parties did say the car had struck the bicycle, although the parties themselves were unsure of whether to say there was a strike. Respondent and Welsh moved the car and tried to get it running, to no avail, and Respondent tried to get the bicyclist medical attention. Because they "hadn't determined that there was an accident," Respondent did not call the DARP tow. In the absence of an accident, "I am not required to DARP it and most of the DARP tow companies will arrive and say there is no accident here...they will refuse it." Instead, he called a mechanic with whom he had become acquainted while working in the precinct. The bicyclist left with the bicycle and the driver remained. On cross-examination, Respondent acknowledged that neither physical damage to property nor physical injury to an individual is a necessary factor in determining whether an accident has occurred. He also admitted that he is not an expert in automobiles and that he did not inspect under the car for signs of damage. Respondent nonetheless determined that there was no accident, but when asked what else could have caused the situation other than an accident, he testified, "I don't know." (Tr. 178-183, 195-199, 205-206, 232-234)

Respondent testified that he went back to his vehicle with the driver, and she entered his vehicle to give him "information for possible paperwork" because "we were still investigating" whether there was an accident. In fact, they "were leaning more towards it appears there was no accident." Respondent denied detaining the woman in his car or trying to take her photograph. On cross-examination, Respondent admitted that he repeatedly told the woman he would take her picture and call her at 1:00 a.m., despite her protestations, while holding his phone in his hand.

but testified that he was just joking. However, he acknowledged that the behavior was inappropriate. Respondent also testified that he did not "actually literally try" to take a "selfie" with the undercover before admitting that he did want to. Respondent also confessed that he may have misrepresented where the tow truck was coming from to the undercover, because she appeared "impatient." After she left his car, a tow truck arrived. Respondent did not recognize the tow truck driver or his company; it was not the acquaintance that he had called earlier. He testified that he was "surprised" to see the tow truck but did not issue a summons despite the DARP procedure's requirement to do so for unauthorized tow trucks. Respondent also admitted that during his third interview, he had said that [REDACTED] told him the truck was coming. When the tow truck arrived, Respondent "maybe" said hello and shook the man's hand, and the tow truck left with the vehicle. Respondent initially testified that he completed the aided report, finalized the job, and left with Welsh. However, on cross-examination, he admitted that he did not remember doing the report when confronted with the testimony that no such report was done. He did not tell the bicyclist that he could get the aided report at the precinct and simply gave him a phone number to call. Respondent testified that he "could have wrote" the bicyclist's name and information on a scrap of paper. He recorded "RMA is on scene...refuse report, and 91." The code "91" signifies "non-crime corrected." He did not make any reference to the tow truck. He denied having any further contact with the tow truck driver afterwards. He also testified that this was the only time he had ever called [REDACTED] to the scene of an accident. (Tr. 183-186, 192-194, 208-222, 229)

Respondent testified that he was questioned pursuant to Section 206-13 of the Patrol Guide on June 26, 2017. His counsel at the interview objected to the questions about the integrity test because Respondent was not shown the audio and video of the incident at that time. Investigators said that the recordings were unavailable and did not adjourn the interview.

Respondent answered the questions "to the best of my ability." He was questioned again on December 6, 2017, and again the recordings were not produced, with Respondent answering to the best of his ability. On April 25, 2018, he had a third interview, where he was shown the audio and video. Based on his refreshed recollection, he again answered truthfully to the extent that he could. On cross-examination, Respondent acknowledged telling investigators that the parties did not want to make a report, even though the audio admittedly shows him replying to the bicyclist's request for a report by telling him he would be sued. (Tr. 187-191, 223-227)

Specification 1 charges Respondent with failing to prepare an accident report. It is undisputed that Respondent did not prepare said report; rather, Respondent's defense is that there was no accident for him to report, because he saw no damage and was given conflicting stories from the undercover officers portraying the parties to the accident. Respondent's claims are unreasonable. Respondent admits that the parties did in fact tell him there had been an accident, even if they expressed some confusion therein. Additionally, it is incredible and unreasonable for Respondent to claim that he did not see the damage to the bicycle or that he did not believe an accident had occurred when both parties were asking him for action to be taken.

Respondent's counsel raised the issue of potential fraud, but this defense is unavailing as MOS are still required to complete an accident report and note the possibility of fraud. P.G. 217-01 requires MOS to take police action "upon notification or observation of a vehicle collision."

Respondent was notified and should have observed the aftermath of a collision. Accordingly, I find Respondent Guilty of Specification 1.

Specifications 2 and 6 charge Respondent with violating the DARP procedure by failing to call the dispatcher and calling an unauthorized tow truck to the scene, respectively. It is undisputed that he did not call the DARP dispatcher. Instead, Respondent's defense is that he did not need to follow the procedure because there was no accident. However, Patrol Guide 217-

09 requires MOS to call the DARP dispatcher if a vehicle at the scene is unsafe to drive. In this case, the driver's car was unable to drive at all. Therefore, Respondent should have called for a tow truck under the DARP program. Instead, he admittedly called an acquaintance of his own in contravention of the Patrol Guide. Consequently, I find Respondent Guilty of Specifications 2 and 6.

Specification 3 charges Respondent with violating the DARP procedure by allowing an unauthorized tow truck to remove the vehicle from the accident scene. Respondent acknowledged that he was surprised to see the tow truck that allegedly had no connection to the acquaintance whom he called, yet he neither stopped the tow truck driver nor issued him a summons as required by Patrol Guide 217-09. Accordingly, I find Respondent Guilty of Specification 3.

Specification 4 charges Respondent with inappropriately requesting to take a photograph with a purported party to an accident. Both the undercover, Moore, and the investigator, Franco, testified that Respondent aimed his camera to take the photograph and said multiple times that he wanted to take a "selfie" with the driver despite her repeatedly asking him not to. Respondent's defense is that he was joking in order to defuse the situation. That defense is unavailing, as it does not change the fact that Respondent did indeed make such requests to the driver. Such conduct is prohibited not because of the given officer's intent but rather because of the effect it has on the member of the public requesting assistance: the request for a "selfie" makes the MOS (and by extension, the entire Department) appear unprofessional and can appear threatening to the civilian's safety and privacy. It is clear that Respondent made several such requests and in doing so undermined the good order and discipline of the Department. Accordingly, I find Respondent Guilty of Specification 4.

Specification 5 charges Respondent with misleading statements during his official Department interview by withholding information relating to how an unauthorized tow truck happened to be at the scene of a vehicle collision he was investigating. Respondent changed his story regarding the tow truck numerous times throughout his official interviews as well as during his trial testimony. Franco testified that Respondent only admitted to calling [REDACTED] during the third interview after being confronted with audio and video of the call. While it is possible that he could have forgotten making such a call, Respondent has demonstrated a lack of credibility and candor with his shifting stories. Additionally, Respondent testified that the integrity test was the only time that he had ever called [REDACTED] to the scene of an accident, making it incredible that he would forget such a unique occurrence when pointedly asked about it during an interview. Therefore, by a preponderance of the evidence, I find Respondent Guilty of Specification 5.

Specification 7 charges Respondent with failing to make proper activity log entries. Franco testified that no reference was made to the tow truck in Respondent's activity log, and Respondent admitted that he did not record the arrival of the tow truck. Respondent also conceded that he did not record the bicyclist's information other than on a piece of scrap paper. Therefore, I find Respondent Guilty of Specification 7.

PENALTY

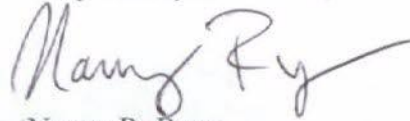
In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 11, 2005. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department Advocate requested this tribunal to impose a penalty of 30 vacation days and one-year dismissal probation, in part citing *Disciplinary Case No. 2017-18003*, in which

Respondent's partner pleaded guilty and negotiated the same penalty. Respondent continued to change his story multiple times on the record. His conduct throughout the process since his first official Department interview and continuing at trial has been characterized by a lack of transparency and shifting explanations for his failure to follow proper procedures. Respondent also described his inappropriate conduct with a purported member of the public as mere joking. Lack of candor has been applied before in this forum as an aggravating circumstance leading to termination. (*See, e.g., Disciplinary Case Nos. 2012-8560 & 2013-10130* [June 9, 2017]). Moreover, failure to acknowledge one's abuse of position has also been applied as an aggravating factor. (*See, e.g., Disciplinary Case No. 2016-16779* [August 2, 2017]). The Court is recommending a higher penalty than requested based on observations of Respondent at trial. It appeared that Respondent either could not comprehend the most basic testimony or that he was lying throughout his own testimony. For example, although the audio tape of Respondent asking to take a "selfie" with the female undercover was played during Moore's testimony, in the presence of Respondent, he initially denied in his own testimony saying anything about the picture. On cross-examination, he admitted that he did say it. Similarly, Respondent shifted his version of events regarding whether he saw damage to the bicycle, even though there were pictures of the bicycle placed in evidence, by initially saying that he did not observe damage and then admitting that he did. With such aggravating circumstances present in the instant case, I recommend that Respondent forfeit 45 vacation days and be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further

proceedings.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPROVED

NOV 27 2019



JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER HENRY HENRIQUEZ
TAX REGISTRY NO. 938657
DISCIPLINARY CASE NO. 2017-18001

Respondent was appointed to the Department on July 11, 2005. On his last three annual performance evaluations, Respondent received a 4.0 overall rating of "Highly Competent" for 2015 and 2016 and a 3.5 overall rating of "Highly Competent/Competent" for 2014. He has received one medal for Excellent Police Duty.

[REDACTED]

Respondent has no formal disciplinary history. In connection with the instant matter, Respondent was placed on Level I Discipline Monitoring on July 13, 2018. Monitoring remains ongoing.

For your consideration.

Nancy R. Ryan
Assistant Deputy Commissioner Trials